

FORM F1 (RULE 2-2 (2))

No. _____

Registry _____

In the Supreme Court of British Columbia

Claimant 1: _____

Claimant 2: _____

NOTICE OF JOINT FAMILY CLAIM

1. Relationship history

Claimant 1 and Claimant 2:

☐ began to live together in a marriage-like relationship on _____

☐ were married on _____

at _____

☐ separated on _____

☐ were divorced from each other by order made on _____

☐ were never married

2. Divorce

☐ Claimant 1 and Claimant 2 are asking for a divorce order.

A. Personal Information:

Claimant 1		Claimant 2
Birthdate:		
Habitually resident in British Columbia since:		
Surname at birth:		
Surname immediately before marriage:		
Marital status immediately before marriage:		
Place of marriage:	City: _____ Prov/State: _____ Country: _____	
Official language choice for <i>Divorce Act</i> proceeding: (See Notice to Claimants below)		
☐ English ☐ French ☐ English and French (bilingual)		

B. Grounds for claim for divorce:

- ☐ Divorce is claimed as a result of having lived separate and apart.
- ☐ Divorce is claimed on grounds other than having lived separate and apart.

Divorce claimed as a result of having lived separate and apart.

- (i) ☐ Claimant 1 and Claimant 2 have lived separate and apart since _____

AND

- ☐ Claimant 1 and Claimant 2 have not lived together since then
- ☐ Claimant 1 and Claimant 2 have lived together again during the following period(s), in an unsuccessful attempt to reconcile:

From: _____ to: _____

From: _____ to: _____

- (ii) ☐ **Other grounds**, under section 8 (2) (b) of the *Divorce Act* (Canada):

- ☐ Adultery (the respondent has committed adultery)
- ☐ Cruelty (the respondent has treated the applicant with physical or mental cruelty of such a kind as to make continued cohabitation intolerable)

AND

- ☐ There has been no condonation of any act relied on under section 8 (2) (b) of the *Divorce Act* (Canada) as a ground for divorce.

C. Claimant 1 and Claimant 2 confirm that:

☐ There is no possibility of reconciliation.

☐ I do not know about and I am not involved in any arrangement to make up or to hide evidence or to deceive the court to obtain a divorce.

D. Proof of marriage:

☐ A certificate of marriage or registration of marriage _____ has been filed

☐ A certificate of marriage or registration of marriage is not being filed with this notice of joint family claim because

_____ and the certificate will be filed before this claim is set down for trial or an application is made for an order of divorce

☐ It is impossible to obtain a certificate of marriage or registration of marriage because:

3. Information concerning children

A. Children

- ☐ There are no children of the marriage, as defined by the *Divorce Act* (Canada), or children of whom Claimant 1 and Claimant 2 are parents within the meaning of the *Family Law Act*.

[OR]

- ☐ There are children of the marriage, as defined by the *Divorce Act* (Canada), or children of whom Claimant 1 and Claimant 2 are parents within the meaning of the *Family Law Act*, and those children are:

Full Name (Surname, First Second Third)	Birth Date	Resides with
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4. Orders asked for in relation to children

- A ☐ Claimant 1 and Claimant 2 are asking for the following order respecting arrangement for parenting or contact:

- B ☐ Claimant 1 and Claimant 2 are asking for an order for child support as follows:

C ☐ Claimant 1 and Claimant 2 are asking for the orders under paragraphs A and B of this section under the following statute(s):

☐ the *Divorce Act* (Canada) ☐ the *Family Law Act*

5. Spousal support

☐ Claimant 1 and Claimant 2 are asking for an order for spousal support as follows:

☐ Claimant 1 and Claimant 2 are asking for an order for spousal support under

☐ the *Divorce Act* (Canada) ☐ the *Family Law Act*

6. Property and debt

A. Property claims under the *Family Law Act*

☐ Claimant 1 and Claimant 2 are asking for an order for:

☐ an equal division of family property and family debt

☐ an unequal division of family property and family debt as follows

B. Other property claims

☐ Claimant 1 and Claimant 2 ask for an order respecting an interest in property or for compensation instead of an interest in that property, as follows:

7. Other

☐ Claimant 1 and Claimant 2 are asking for an order in the following terms:

8. Claimants' addresses for service

Claimant 1: _____

Fax (optional): _____

E-mail (optional): _____

Claimant 2: _____

Fax (optional): _____

E-mail (optional): _____

Date: _____

Signature of

☐ Claimant 1

☐ Lawyer for Claimant 1

Date: _____

Signature of

☐ Claimant 2

☐ Lawyer for Claimant 2

Notice to Claimants: under **section 23.2 of the *Divorce Act***, you may choose to file pleadings or other documents, including this form, give evidence or make submissions in any ***Divorce Act*** proceeding in either of the two official languages of Canada (English or French).

Rule 1-1(1) of the Supreme Court Family Rules defines "*Divorce Act* proceeding" as follows:

"*Divorce Act* proceeding" means a family law case in which an order is sought under the *Divorce Act*.

If in this family law case a claim is made under the Family Law Act and one or both of the parties is represented by a lawyer, each of the lawyers must complete a certificate in the following form

LAWYER'S CERTIFICATE (FAMILY LAW ACT, S. 8(2))

I, _____, lawyer for _____

certify that, in accordance with section 8 (2) of the *Family Law Act*, I have

- (a) discussed with the party the advisability of using various types of family dispute resolution to resolve the matter, and
- (b) informed the party of the facilities and other resources, known to me, that may be available to assist in resolving the dispute.

Date: _____

Signature of lawyer

[type or print name]

If in this family law case a claim is made under the Family Law Act and one or both of the parties is represented by a lawyer, each of the lawyers must complete a certificate in the following form

LAWYER'S CERTIFICATE (FAMILY LAW ACT, S. 8(2))

I, _____, lawyer for _____

certify that, in accordance with section 8 (2) of the *Family Law Act*, I have

- (a) discussed with the party the advisability of using various types of family dispute resolution to resolve the matter, and
- (b) informed the party of the facilities and other resources, known to me, that may be available to assist in resolving the dispute.

Date: _____

Signature of lawyer

[type or print name]

The following certificate must be completed by each party to a divorce claim.

PARTY'S CERTIFICATE (*Divorce Act* (Canada), s. 7.6)

- ☐ By checking this box, I, _____, certify that I am aware of my duties under sections 7.1 to 7.5 of the *Divorce Act* (Canada), which say:
- 7.1 A person to whom parenting time or decision-making responsibility has been allocated in respect of a child of the marriage or who has contact with that child under a contact order shall exercise that time, responsibility or contact in a manner that is consistent with the best interests of the child.
- 7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.
- 7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process
- 7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.
- 7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

The following certificate must be completed by each party to a divorce claim.

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- 7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.
- 7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process
- 7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.
- 7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

*The following certificate must be completed for each party
to a divorce claim who is represented by a legal advisor.*

LEGAL ADVISER'S CERTIFICATE (*Divorce Act* (Canada), S. 7.7 (3))

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- ☐ By checking this box, I, _____, legal advisor for _____
certify that I have complied with section 7.7 of the *Divorce Act* (Canada), which says:
- 7.7. (1) Unless the circumstances of the case are of such a nature that it would clearly not be appropriate to do so,
it is the duty of every legal adviser who undertakes to act on a spouse's behalf in a divorce proceeding
- (a) to draw to the attention of the spouse the provisions of this Act that have as their
object the reconciliation of spouses; and
 - (b) to discuss with the spouse the possibility of the reconciliation of the spouses and to
inform the spouse of the marriage counselling or guidance facilities known to the
legal adviser that might be able to assist the spouses to achieve a reconciliation.
- (2) It is also the duty of every legal adviser who undertakes to act on a person's behalf in any
proceeding under this Act
- (a) to encourage the person to attempt to resolve the matters that may be the subject of an
order under this Act through a family dispute resolution process, unless the
circumstances of the case are of such a nature that it would clearly not be appropriate to
do so;
 - (b) to inform the person of the family justice services known to the legal adviser that might
assist the person
 - (i) in resolving the matters that may be the subject of an order under this Act, and
 - (ii) in complying with any order or decision made under this Act; and
 - (c) to inform the person of the parties' duties under this Act.

*The following certificate must be completed for each party
to a divorce claim who is represented by a legal advisor.*

LEGAL ADVISER'S CERTIFICATE (*Divorce Act* (Canada), S. 7.7 (3))

-
- ☐ By checking this box, I, _____, legal advisor for _____
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circumstances of the case are of such a nature that it would clearly not be appropriate to
do so;
 - (b) to inform the person of the family justice services known to the legal adviser that might
assist the person
 - (i) in resolving the matters that may be the subject of an order under this Act, and
 - (ii) in complying with any order or decision made under this Act; and
 - (c) to inform the person of the parties' duties under this Act.